

6.	LEOS VS. LEE 2023-01326455	MOTION TO CONTEST GOOD FAITH SETTLEMENT Defendant Joanna Cloonan’s Motion to Contest Good Faith Settlement is DENIED. <u>Cloonan’s Request for Judicial Notice</u> In support of her motion, Cloonan requests judicial notice of the following document: - Exhibit 1- April 2024 copy of a press release from the Orange County District Attorney’s Office stating Defendant Wynne Lee pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle. Lee objects to the request for judicial notice on the ground the Court may not take judicial notice of the truth of the statements contained in the press release. Evidence Code section 452, subdivision (c), provides for judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” A press release from the Orange County District Attorney’s Office may be considered an official act of the executive branch of the state. “While courts may notice official acts and public records, ‘[they] do not take judicial notice of the truth of all matters stated therein.’ (<i>Mangini v. R.J. Reynolds Tobacco Co.</i> (1994) 7 Cal.4th 1057, 1063 [citations omitted]; overruled on other grounds by <i>In re Tobacco Cases II</i> (2007) 41 Cal.5th 1257.) “[T]he taking of judicial notice of the official acts of a governmental entity does not in and of itself require acceptance of the truth of factual matters which might be deduced therefrom, since in many instances what is being noticed, and thereby established, is no more than the existence of such acts and not, without supporting evidence, what might factually be associated with or flow therefrom.” (<i>Id.</i> at pp. 1063-1064 [citation omitted].) Accordingly, the Court takes judicial notice of the existence of the press release but not of the truth of the matters contained therein. <u>Background</u> Plaintiff and Cloonan were parents and shared custody of Aiden Leos (deceased). (Compl. ¶¶ 8, 9.) Plaintiff alleges on 5/21/21, Aiden, six years old, was riding as a passenger in a vehicle driven by Cloonan. (Compl. ¶ 18.) As Cloonan was driving along the 55 freeway, she became involved in a “road rage” incident with Lee.
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(Compl. ¶ 20.) Cloonan passed Lee's vehicle and pointed her middle finger at Lee. (Compl. ¶ 21.) Eriz, who was riding with Lee, became enraged and fired a bullet from a gun into the rear of Cloonan's vehicle and struck and killed Aiden. (Compl. ¶ 23.)

Plaintiff and Lee entered into a settlement agreement for \$50,000.00.

Legal Standard

In an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt, a party to that action may seek from the court a determination that the settlement between the plaintiff or other claimant and one or more alleged tortfeasors or co-obligors was made in good faith. (Code Civ. Proc., § 877.6.)

"If the good faith settlement is contested, section 877.6, subdivision (d), sets forth a workable ground rule for the hearing by placing the burden of proving the lack of good faith on the contesting party. Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the non-settlor who asserts that the settlement was not made in good faith. . . . If contested, declarations by the non-settlor should be filed which in many cases could require the moving party to file responsive counterdeclarations to negate the lack of good faith asserted by the non-settling contesting party." (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261-1262 [citations omitted].)

The standard for determining whether a settlement was made good faith is set forth in *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488. Under *Tech-Bilt*, the following factors are considered:

- (1) a rough approximation of plaintiff's total recovery and the settlor's proportionate liability;
 - (2) the amount paid in settlement;
 - (3) the allocation of settlement proceeds among plaintiffs;
 - (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
 - (5) the financial conditions and insurance policy limits of settling defendants; and
 - (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants.
- (*Id.* at pp. 498-501.) The evaluation must be made based on the information available at the time of settlement. (*Id.* at p. 599.)

"The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would

establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (*Tech-Bilt, supra*, 38 Cal.3d at pp. 499-500.)

“The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor’s liability to be.” (*City of Grand Terrace, supra*, 192 Cal.App.3d at p. 1262.)

1. A Rough Approximation of Plaintiff’s Total Recovery and Settlor’s Proportionate Liability

Lee contends in her application “the amount of the parties’ settlement represents a significant proportion of the damages that Plaintiff could possibly recover from Settling Defendant at trial, if any.” (App. at 9:12-13.) Lee states the settlement is proportionate to her liability as the harm resulted from Eriz’s act and not any unsafe driving from Lee. (Opp. at 6:5-7.)

Cloonan contends Lee’s proportionate share of liability in Aiden’s death is substantially greater than represented.

As an initial matter, Plaintiff contends the range of possibilities for the “value” of Plaintiff’s claims is uncertain. (Opp. at 6:22-23.)

Plaintiff alleges he has suffered emotional pain and suffering from losing his son in an amount subject to proof at time of trial. (Compl. ¶ 50.) The only specific monetary sum Plaintiff alleges as damages is \$250,000, half of the \$500,000 he claims Aiden’s grandmother raised through a “Go Fund Me” account but has refused to give to Plaintiff. (Compl. ¶¶ 52-59.) Causes of action related to that allegation, however, are related only to Cloonan and her mother, Lacy. Thus, neither party sets forth a rough approximation of Plaintiff’s total claimed damages for consideration.

Substantial evidence (e.g., factual declarations) showing the nature and extent of the settling defendant’s liability is required to support a determination of “good faith.” (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1348.) “Substantial evidence, of course, is not synonymous with ‘any’ evidence, but is evidence which is of ponderable legal significance. It must be ‘reasonable in nature, credible, and of solid value; it must actually be ‘substantial’ proof of the essentials which the law requires in a particular case.” (*Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871 [citations omitted].)

Cloonan contends the potential damages on a wrongful death case of this nature are likely to be significant, given that the case involves the death of a healthy six-year-old child. Cloonan also contends Lee has admitted to unlawfully concealing the firearm Eriz used to shoot Aiden, fled the scene, and aided Eriz in evading arrest. Cloonan contends this illustrates Lee was connected to, and complicit in, the

criminal conduct surrounding Aiden’s death, and her role extended beyond mere negligent driving. (Mtn. at 4:8-12.)

In doing so, Cloonan relies on an April 2024 press release from the Orange County District Attorney’s Office stating Lee pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle.

As discussed above, the Court takes judicial notice of the existence of the press release but not of the truth of the matters contained therein. Accordingly, the press release does not provide substantial evidence regarding Lee’s proportionate liability sufficient to satisfy Cloonan’s burden. Even if the contents of the press release were true, however, they do not support a finding the settlement was grossly disproportionate to Lee’s relative liability.

Lee contends the charges she pled to “are related to conduct that occurred after-the-fact, rather than conduct that contributed to the actual death of the Decedent.” (Opp. at 4:14-15.) As an initial matter, the press release states Lee “pleaded guilty to one felony count of accessory after the fact and one misdemeanor count of having a concealed firearm in a vehicle.” Thus, while a count of accessory after the fact may relate to conduct that occurred after the underlying incident, a count of having a concealed firearm in the vehicle directly relates to the incident.

Having a concealed firearm in a vehicle does not, however, establish ownership of the firearm. (See Penal Code, § 25400.) Cloonan does not contend the gun belonged to Lee, nor does Plaintiff’s complaint allege the gun belonged to Lee. Rather, Plaintiff alleges Doe Defendants “provided substantial support for Defendants, and each of them, including but, not limited to: selling, training, teaching, providing and/or encouraging the use of the 9mm Glock 17 Pistol (‘GLOCK’), in a given situation, for a good reason in the mind of MARCUS ANTHONY ERIZ, or for no reason.” (Compl. ¶ 11.) Plaintiff also repeatedly refers to “his” (Eriz’s) firearm throughout the complaint. Additionally, it is undisputed Eriz fired the gun.

Ultimately, Cloonan has not demonstrated the settlement was grossly disproportionate to Lee’s relative liability.

2. Amount Paid in Settlement and Allocation Among Plaintiffs

Lee contends \$50,000 is a substantial sum considering Lee contests liability and damages. Cloonan disputes the sum for the reasons discussed above. Allocation is not at issue as there is only one Plaintiff.

3. A Recognition Settlor Should Pay Less in Settlement than He would if He were Found Liable After a Trial

Lee contends the settlement demonstrates Plaintiff appreciated the certainty of receiving the settlement proceeds rather than risking a decision reached at trial, or even a lengthy, drawn-out litigation. Cloonan does not address this factor.

4. Settling Defendant's Financial Conditions and Insurance Policy Limits

Plaintiff and Lee settled for Lee's policy limits of \$50,000. (Zinn-McBride Decl. ISO App., ¶ 8.) Lee also contends she is insolvent and has no other assets to contribute towards a settlement or judgment. Cloonan contends policy limits alone do not establish good faith and Lee has not presented evidence regarding her insolvency.

Lee filed a Declaration of No Assets demonstrating she cannot pay a judgment in excess of her \$50,000 policy. While the declaration is executed outside California, it does not certify under penalty of perjury "under the laws of the State of California," that its contents are true. (See Code Civ. Proc., § 2015.5.)

As such, while Lee contends "there are no funds outside of insurance by which Settling Defendant can contribute personally to any settlement," (Opp. at 7:13-14), this is unsupported by any admissible evidence.

5. The Existence of Collusion, Fraud, or Tortious Conduct Aimed to Injure the Interests of the Non-Settling Defendants

Lee contends she knows of no instances of fraud, collusion, or other tortious conduct to injure Cloonan or any other non-settling defendants and Cloonan does not contend the existence of collusion, fraud, or tortious conduct.

In considering the factors above, the Court does not find Cloonan satisfied her burden of demonstrating the settlement is so far "out of the ballpark" as to be inconsistent with the equitable objectives of the statute.

For the first time on reply, Cloonan requests the Court order the settlement funds be held in trust pending final adjudication of liability and apportionment of the wrongful death recovery should the Court find the settlement to be in good faith as she and Plaintiff are statutory heirs.

"Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the

		respondent of an opportunity to counter the argument.” (<i>American Drug Stores v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453 [citation omitted].) As such, the Court declines to consider this argument as Lee was deprived of the opportunity to address this argument.
7.	IRVINE WESTPARK PLAZA LLC VS. BRINKER RESTAURANT CORPORATION 2025-01473357	MOTION FOR TERMINATING SANCTIONS Defendant Brinker Restaurant Corporation dba Chili’s Grill and Bar’s Motion for Terminating Sanctions, or in the Alternative, Issue Evidentiary Sanctions and Monetary Sanctions in the Amount of \$5,922.50 against Plaintiff Irvine Westlake Plaza LLC is GRANTED in part. Code of Civil Procedure section 2023.030 provides, “To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the Court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose monetary, issue, evidentiary, or terminating sanctions on one engaging in the misuse of the discovery process. Code of Civil Procedure section 2023.010 states, in part, “Misuses of the discovery process include, but are not limited to, the following: (g) Disobeying a Court order to provide discovery.” Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12 [citation omitted].) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [citation omitted].) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal.App.4th 377, 390 [citation omitted].) Plaintiff’s initial discovery responses stated, “Responding Party agrees to produce the requested documents to the extent that they exist and are within its possession and/or control.” (ROA 30 (Mtn., Ex. C.)